

Deewarein Bol Uthengi



JUSTICE ROW: (Clockwise from left) Musharraf is in a tight spot; Sharif and Zardari differ on the restoration of the judiciary; the sacked Chaudhry



against Al Qaeda and the Taliban. Zardari has never discounted the possibility of PPP having a working relationship with Musharraf, speaking instead of "strengthening democracy" and "national reconciliation". He has also consistently asked that the issue of the judiciary be left to the Parliament to debate. PPP's apparent frontrunner for the prime ministerial slot, Makhdoom Amin Fahim, has been even more categorical in soothing ruffled presidential feathers, saying he saw "no need to impeach Musharraf at this time".

Zardari has other reasons to be wary of an assertive judiciary. Many of the corruption cases pending against him are set to be dropped under the National Reconciliation Ordinance promulgated by Musharraf and challenged by the pre-November 3 Supreme Court. While denying such considerations, Zardari talked about "setting parameters for the judiciary" so that it doesn't "destabilise the government". As constitutional expert Mirza Mahmood Ahmad puts it, "Rather than legal arguments, the issue is actually one of political will."

The immediate pressure put on the

judges, who took oath to fill positions vacated by the sacked judges. Further, what will happen to the cases decided between November 3 and now?

Prime among the other, bigger issues is what a restored judiciary would mean for Musharraf. Sharif sees restoration as the best solution for booting Musharraf from presidency. But even apart from the questionable propriety of "partisan" judges deciding the fate of the man who kicked them out, sources say that the Americans—who are wary of Sharif's conservative base as it is—have made clear to PPP Co-chairman Asif Zardari that they would not like to see such a humiliating end to their most trusted ally in the war



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